

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CLBC044468: KARIN NEELY vs DAVID STILLSON, et al.

08/25/2026 in Department 21

Motion for Attorney Fees/Costs

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff Karin Neely’s motion for prevailing party attorney fees (unopposed)

Tentative Ruling:

Plaintiff’s unopposed motion for contract-base prevailing party attorney fees is GRANTED as prayed, in the amount of \$3,370.00. Defendants shall have 20 days from notice to satisfy the award.

Plaintiff to give notice.

Discussion:

Plaintiff is presumptively the prevailing party because she is the party “with a net monetary recovery” (CCP §1032(a)(4)) and did not fail to accept a more-favorable statutory offer to compromise. Counsel’s hourly rate (\$250) is more than reasonable for this type of work in this legal community. Having reviewed counsel’s billing summary for this case, the hours counsel has devoted to this case (roughly 15 hours) is “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” CCP §1033.5(c)(2). Thus, counsel’s request for \$3,370 (to include filing fees) is GRANTED.